

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD.,

RESPONDENT,

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG
SDSAP GLOBAL SCL ASIA PACIFIC PTE LTD., AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED

THIRD PARTY RESPONDENTS,

**MOTION TO COMPEL RESPONDENT'S FAILURE TO
TIMELY PRODUCE FOUNDATIONAL DOCUMENTS AND ESI DATA**

Samsung Electronics America, Inc. (“SEA”) respectfully moves, pursuant to 46 C.F.R. § 502.147(a)(6) and 502.150, for an order compelling COSCO Shipping Lines Co., Ltd. (“COSCO”) (collectively, the “Parties”) to (1) identify with particularity all documents and electronically stored information (“ESI”) that COSCO contends are located exclusively in China and produce those materials by a date certain and (2) immediately produce all remaining responsive documents and ESI accessible from outside China, including complete electronic data interchange (“EDI”) and other database exports and related operational data.¹

I. INTRODUCTION

Respondent has not been forthright with the Presiding Officer, let alone Complainant, concerning its failure to produce documents by a date certain. Regrettably, COSCO’s status report submission of February 9, 2026, did not fulsomely address the issues and required the filing of this motion. Cognizant of Your Honor’s orders dated May 28, 2025, July 8, 2025, and September 12, 2025, the Parties have been acting under what SEA refers to as an “elevated meet and confer” requirement that the Presiding Officer has placed on the lawyers in this matter to essentially talk more and file less following discovery disputes earlier in this proceeding. SEA has diligently sought information from COSCO but has repeatedly received unsuitable responses. SEA most reluctantly raises two foundational issues with the Presiding Officer as only Your Honor can

¹ In accordance with 46 C.F.R. § 502.150(a)(2)(ii), SEA attaches a copy of its discovery requests. As reflected in ¶ 22 of the Declaration of Kristine Little, dated February 10, 2026 (“Little Decl.”), COSCO has not raised specific objections to particular interrogatories or requests for production, but instead has sought extensions and delayed responding to SEA’s discovery requests as a whole, and has been unable to confirm whether any portion of its production is complete. SEA includes its discovery requests consistent with the Presiding Officer’s Order in *OL USA LLC v. Maersk A/S*, Dkt. No. 24-11 (ALJ June 14, 2024), where the dispute concerned delayed or absent discovery responses rather than objections to specific requests.

require COSCO to answer questions on the record as to a date certain for production, privacy, and secrecy claims.

This discovery dispute has arisen as a result of COSCO's persistent and unjustified failure to produce: (i) responsive documents purportedly located in China and Korea; and (ii) ESI and EDI located outside of China, all of which are not only necessary to proceed with depositions in this case, but essential to the adjudication of SEA's claims. Over the last *five months*, SEA repeatedly attempted to obtain cooperation from COSCO to reach a resolution prior to seeking judicial intervention from the Presiding Officer. COSCO repeatedly assured SEA that all document production issues would be resolved, and provided SEA with projected production deadlines, which SEA relied on for months. To date, rather than cure the deficiencies, COSCO continues to provide shifting explanations as to why the China-based responsive materials have not been timely produced based upon unspecified foreign law or state secrets concerns. And just recently, on January 21, COSCO suggested it may need to produce emails for persons located in China, but redacting the sender and recipients, primarily on Chinese law privacy grounds. These are alarming statements not articulated in previous status report submission to the FMC, let alone counsel, and they are serious enough that it must be addressed with the FMC now. Additionally, COSCO has also failed to provide any basis for the failure to produce Korea-based documents, nor has it identified which SEA discovery requests or document categories are affected.

This unnecessarily prolonged discovery impasse and COSCO's consistent undermining of the Parties agreed-upon schedule has resulted in COSCO essentially receiving a stay of these proceedings. Only the Presiding Officer has the power to direct COSCO to definitively state on the record its legal positions and take action by a date certain or face the consequences.

II. LEGAL STANDARD

Discovery under the Federal Maritime Commission's ("FMC") Rules of Practice and Procedure ("Rule") extends to any non-privileged matter relevant to a party's claim or defense and proportional to the needs of the case, whether admissible at trial. Rule 150 authorizes the Presiding Officer to compel document production when a party fails to respond, provides insufficient responses, or relies on spurious objections, and parties must comply with said discovery orders, including the Scheduling Order's document-production deadline. 46 C.F.R. § 502.150.

The FMC applies the Federal Rules of Civil Procedure ("FRCP") on issues of privilege: if a party invokes foreign law, it must state its objections with particularity under FRCP 26(b)(5)(A) and prove under FRCP Rule 44.1 that the foreign law governs the requested discovery and conflicts with U.S. law. *In re Valsartan*, No. MDL 2875 (RBK), 2021 WL 6010575, at *10–11 (D.N.J. Dec. 20, 2021). Foreign blocking statutes do not override a U.S. court's authority to compel discovery from parties within its jurisdiction. *Societe Nationale Industrielle Aerospatiale v. U.S. Dist. Ct. for the S. Dist. of Iowa*, 482 U.S. 522, 544 n.29 (1987).

III. ARGUMENT

COSCO has failed to comply with its discovery obligations, relying on claimed Chinese-law concerns as a basis to be unable to produce documents overseas on a timely basis, and delaying the production of critical EDI and ESI requests. COSCO's conduct undermined the agreed document schedule, prevented the start of depositions, and the orderly prosecution of this case.

A. COSCO Failure to Produce Key Foreign-Based Documents.

SEA completed its production on August 29, 2025, pursuant to the then-applicable deadline set by the Presiding Officer; COSCO did not. On September 5, 2025, the Parties jointly moved to extend the discovery schedule, advising the Presiding Officer that while SEA had produced over 2,000,000 pages, COSCO had produced only approximately 199,000 pages, and explaining that

SEA would be severely prejudiced if COSCO were not required to complete its production sufficiently in advance of depositions (Dkt. 75). The request was granted and the amended document production deadline was extended to October 17, 2025 (Dkt. 76). Despite the extension, it soon became apparent that COSCO would fail to meet the October 17 deadline as well. Specifically, on October 8, 2025, the Parties conducted the first of numerous meet-and-confers on COSCO's anticipated production delays. *See* Little Decl. at ¶9. While COSCO acknowledged its production was incomplete, it simultaneously failed to provide any concrete timetable for completion. It was at this meet-and-confer that COSCO stated, *for the very first time*, that a substantial number of responsive documents were located in both China and Korea and that the China-based documents were subject to unspecified Chinese laws, requiring a separate and prolonged review process.²

Moreover, at the October 8, 2025, meet-and-confer COSCO provided no timetable for the production of documents from Korea. *Id. Amazingly*, COSCO indicated that it had not yet even requested EDI data. On October 9, 2025, SEA sent COSCO a deficiency letter detailing the aforementioned discovery failures. Little Decl. at ¶11. On October 15, 2025, at a meet-and-confer, COSCO represented only that certain U.S.-based documents might be produced within thirty days. Little Decl. at ¶10. The October 17, 2025 amended document production deadline came and went and on November 7, 2025, COSCO expressly conceded in a responsive letter that its production

² During the January 21, 2026 meet-and-confer, COSCO proposed producing Chinese-language emails with all identifiable information—such as the “to” and “from” fields—redacted, purportedly to expedite its production. This proposal, however, offers little practical utility, as such redactions would significantly undermine the documents' evidentiary value for this administrative record, let alone SEA's ability to assess their relevance and completeness. Little Decl. at ¶25. The unworkable proposal is noticeably missing from the February 9, 2026, status report.

was still incomplete and still failed to provide a new timetable for production, stating only that it would continue producing all documents on a rolling basis. Little Decl. at ¶16.

On November 17, 2025, the parties submitted a joint status report to the ALJ wherein COSCO described the difficulties it claimed to be facing in collecting documents from China. Dkt. 85. COSCO represented to SEA in separate communications that all documents would be produced by January 16, 2026. SEA relied in good faith on these representations and with this Court's May 28, 2025, July 8, 2025, and September 12, 2025, Orders regarding cooperation in mind, SEA consented to a further extension. On November 25, 2025, based on COSCO's November 17 meet-and-confer representations that it would complete its production pursuant to a proposed timeline, the parties filed the currently pending second joint motion to extend the Scheduling Order (Dkt. 88), which proposed January 16, 2026, as the second amended production deadline—a deadline that was ultimately not met by COSCO.

In the months that followed the extension, SEA engaged in frequent email communications and meet-and-confers with COSCO to address COSCO's production deficiencies to no avail, including through detailed correspondence dated December 10, 2025, and January 9, 2026. Little Decl. at ¶19, 22. Specifically, the January 9 letter addressed the lack of EDI data produced by COSCO to date, as well as why COSCO's delay in producing ESI based on issues of Chinese law were without grounds and unnecessary prolonging discovery. Little Decl. at ¶22. The proposed January 16, 2026, deadline in the Parties' joint motion came and went and COSCO still could not identify any date by which its production would be completed, offering only non-committal and open-ended assurances.

For example, SEA immediately sought confirmation concerning COSCO's completion of its production by the January 16 date, over the holiday weekend (January 17-19, 2026) and

COSCO's responses were stilted and unclear. Little Decl. at ¶24. SEA even issued a notice of deposition on January 18 (as the proposed schedule by the parties did not allow deposition notices to be issued until January 16), with the express purpose of seeking a COSCO witness that could address the document shortfalls. Little Decl. at ¶24. SEA continued to undertake efforts to resolve these issues through further communications and January 21 and February 5 meet-and-confer discussions. Little Decl. at ¶¶25, 28. These discussions have proven unsuccessful as COSCO will not commit to a specific date to produce its documents. Little Decl. at ¶22.

Although COSCO filed a status report on February 9, 2026 (after continued prodding by SEA to correct the record), accepting responsibility for the aforementioned discovery delays, this motion to compel remains necessary to address the two foundational issues set forth herein.³ COSCO's prolonged inability to commit to a completion deadline or comply with basic ESI obligations demonstrates that informal measures—whether additional joint status reports or stipulated extensions—would not have sufficed under these circumstances. And COSCO acknowledged in its February 9 status report that it cannot provide a firm date by which its production will be completed, only that it “may take 90 days”, further justifying the need to seek relief from the Presiding Officer.⁴

³ Although COSCO's continued failure to complete its discovery obligations by a date certain is just one of numerous persistent deficiencies in COSCO's production, SEA is negotiating with COSCO in good faith in order to reach a resolution on these issues to avoid intervention by the Presiding Officer and does not raise these issues in this motion to compel foundational documents.

⁴ COSCO's February 9, 2026, status report asserts purported deficiencies in SEA's production. SEA will vigorously defend its position should COSCO formally raise it before the FMC. The deficiencies raised might simply be an attempt to distract from its failure to comply with its discovery obligations, as the contentions are misplaced. COSCO's interrogatories improperly demand that SEA (i) identify *all* facts supporting its claims and (ii) enumerate, by Bates number, *every* document responsive to each interrogatory—effectively requiring SEA to compile and index voluminous information already contained in the business records SEA has produced, as well as materials SEA cannot yet identify with specificity because COSCO's own production remains

In all, despite the passage of more than two months since the second joint filing, COSCO's production—though increased to approximately 999,000 pages—remains materially incomplete.⁵ As of the date of this filing, and after multiple meet-and-confers, COSCO has still not committed to a concrete date by which it will complete its document production or to cure the outstanding deficiencies related to missing procedure documents.⁶

B. COSCO Has Failed to Produce EDI Data

COSCO has failed to provide a timeline for the production of basic EDI data on SEA shipments within its possession, custody or control. This information was sought by SEA *nearly eight months ago* (June 18, 2025) and is critical and proportional to its claims. Little Decl. at ¶5.

incomplete. Forcing SEA to crystallize and commit to detailed factual and legal contentions now—before COSCO has completed its own document production—would create an incomplete or misleading record. The demand of this type of interrogatory information has been criticized by a fellow Administrative Law Judge in a recent discovery hearing, and SEA will address the issue further on the record should COSCO persist with its arguments wholly unsupported by FMC authority.

⁵ Notwithstanding COSCO's representation that its production is materially complete, COSCO's own documents confirm that detention disputes were handled **entirely by Shanghai**—leaving SEA without the associated Shanghai-sourced records. The absence of those communications and decision-making materials creates a material gap in COSCO's production and deprives SEA of key evidence relevant to its detention claims. *See* COSCO0246449 (email from COSCO Shipping Lines (North America), Inc. dated November 26, 2021 advising that “any disputes regarding Per Diem charges are handled via our offices in Shanghai – they are in copy and will answer accordingly.”).

⁶ COSCO asserts that it “intends to make a supplemental production” of additional U.S.-based documents at SEA's request. But that supplementation is necessary only because COSCO's prior production was incomplete. COSCO's January 16, 2026 production included a November 2022 email (COSCO0960922) and attachment (COSCO0960923) identifying procedure documents directly relevant to SEA's claims and stating that COSCO uploaded “139 documents, either original or updated,” to a SharePoint site. Little Decl. at ¶31. Yet SEA's review has revealed none of these documents or their referenced versions in COSCO's production, confirming that COSCO has *not* substantially completed production from its U.S. custodians. On February 6, 2026, SEA notified COSCO of these deficiencies and requested supplementation. COSCO's forthcoming supplemental production is therefore not a discretionary courtesy—it is a corrective measure necessitated by its failure to produce responsive documents in the first place. Little Decl. at ¶22.

To date, COSCO has not provided a comprehensive export of relevant information from its EDI systems relating to SEA shipments, in a format that SEA could meaningfully use. COSCO has only produced a few select spreadsheets which fail to contain data on all relevant SEA shipments and the data points SEA seek through discovery.⁷ This despite the fact that COSCO maintains information in its EDI systems capable of identifying SEA shipments. For example, while COSCO produced a single curated EDI document covering nearly 16,000 SEA shipments (COSCO0624910), this spreadsheet still omits numerous shipments and categories of data that COSCO maintains in databases IRIS4 and IDDS⁸ in the normal course of business. Little Decl. at ¶29. SEA has narrowly targeted this missing data because these matters go to the heart of the each-container mandate as to recovery of damages, and the burden on COSCO of exporting this data already maintained in the normal course of business is proportionate to the needs of the case.

On January 9, 2026, SEA identified these missing or incomplete fields for COSCO in a deficiency letter.⁹ COSCO should be required to provide full EDI/database exports for defined sets of shipments in native or export formats directly generated from IRIS4 and IDDS, with all associated data fields and a contemporaneous data dictionary describing each field. SEA is also entitled to standard metadata about the exported files themselves, such as Bates ranges, custodian and source-system information, and creation/modified timestamps, to validate completeness and

⁷ *E.g.*, free time dates, rates and rules, invoice references, and internal codes.

⁸ *See, e.g.*, COSCO0199383, COSCO0199365, and COSCO0192152 (these include columns for TOTALDAYS, OVERDAYS, INVOICENO, PAYERCODE, RATENO, NORMAL_FREEDAY, VESSELDELAYDAYS, RECORD_SOURCE, TRUCKER, DOCREF, release and return facilities, multiple categories of “free days,” and EDI status and remarks). Little Decl. at ¶32, 33, 34.

⁹ These fields include vessel discharge date/time; first and last free days at marine terminals; charge rate and rule information; applicable tariffs; invoice reference data; internal reason codes for delay; job-order/work-order data; chassis-related data; diversion request data; and fields relating to COSCO’s internal evaluation of storage or waiver requests.

chain of custody. These requirements mirror generally accepted ESI practices and do not impose any obligation on COSCO to create new substantive data, but only to export and produce the information it already maintains in its own systems in the normal course of business.

VI. MEET AND CONFER CERTIFICATION

SEA has diligently engaged in multiple meet-and-confer sessions with COSCO to address ongoing production deficiencies, the latest of which occurred on February 5, 2026. During this meeting, COSCO would not file its own motion to address its prior misrepresentations as to failing to produce documents in this case, and instead filed a deficient status report on the afternoon of February 9. Given COSCO's continued inability to provide a firm completion date and the protracted delays, SEA notified COSCO on February 6, 2026, of its intent to file this motion.

VII. CONCLUSION

This motion to compel seek to hold a party to an FMC proceeding, a licensed and regulated entity, to its discovery obligations to produce documents by a date certain after blowing right past prior scheduling order dates. In this administrative proceeding, it is critical that the record reflect COSCO deficiencies, and that steps be taken to hold them accountable.

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Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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